For, even as the judgment has helped him continue in power, the Thackeray camp has claimed moral victory because the apex court pointed to lapses in the action taken by then governor H.S. Koshyari in ordering Thackeray to take a floor test after Shinde and his legislators rebelled against the Thackeray-led Maharashtra Vikas Aghadi (MVA) coalition in June 2022. Likewise, the Supreme Court also questioned the assembly speaker's role in the entire episode. This beratement by the apex court, claim Thackeray's supporters, strengthens their contention that the BJP—Shinde's partner in the state—misused government machinery and the central investigation agencies to dislodge the MVA coalition, and will boost sympathy for them among voters due to the perception that they have been wronged. Thackeray, on his part, has used the apex court's adverse observations to dare Shinde and Fadnavis to resign on moral grounds.

"The judgment has made it clear that the system was misused to topple our government... this will boost public sympathy for us as it has deepened the perception that we have been wronged," says a senior leader of the Thackeray Sena. The victory of the Shiv Sena (Uddhav Balasaheb Thackeray) candidate Rutuja Latke in the Andheri East assembly bypolls in November 2022 and, more crucially, that of Ravindra Dhangekar of the Congress from the BJP bastion of Kasba Peth in Pune (March 2023) is seen as a vindication of the claim that voters sympathise with Thackeray and the MVA. The recent polls of the Agriculture Produce Market Committees have seen Shinde's ministers take a beating.

Shinde's other source of trouble lies within, as his legislators are likely to bear on him to immediately expand his cabinet now that the Supreme Court has offered the ruling coalition a reprieve. Shinde and Fadnavis were sworn in as chief minister and deputy chief minister, respectively, on June 30, 2022, and intense lobbying within the Shinde camp for ministerial berths led to the cabinet being expanded only 40 days later to include nine ministers from each side. The next round of expansion, says Sanjay Gaikwad, Shinde loyalist and Shiv Sena MLA from Buldhana, is expected to take place by May-end. This is where Shinde will have to "walk the tightrope," as a Lok Sabha MP from his camp admits, as several legislators from his faction are vying for ministerial berths.

The Maharashtra council of ministers can have a strength of 43, including the chief minister, and while Shinde is insisting on getting an equal share of ministerial berths and positions on state-run corporations, senior BJP leaders say that their party, which has a bench strength of 106 versus 40 for Shinde, is in no mood to oblige. Shinde may get between four and six ministerial positions, with the rest going the BJP's way. This is bound to lead to intense disgruntlement among those who do not make it and Shinde may have a difficult time keeping dissidence in check, since many MLAs are said to have joined him expecting a cabinet berth. But, as the Lok Sabha MP points out, the disgruntlement will not reach disruptive levels due to the fear of central investigating agencies getting into the act.

Following the Supreme Court verdict in favour of the Shinde Sena, the MP says they are expecting some of the fence-sitters from the Thackeray-led faction to join them. "There was an air of uncertainty over the constitutional legality and future of this government, but they have been laid to rest now. The ECI has already awarded the Shiv Sena name and symbol to us. Put together, this may lead to more defections into our party," he claims. The BJP's ability to browbeat the Shinde Sena by holding out the prospect of engineering defections from the NCP will also diminish. Gaikwad adds that the increasing rumblings in the MVA and questions about its future would lead to some leaders and MLAs joining them. "Thackeray's immature politics has led to this situation," he says.

Shinde's most daunting challenge, however, is establishing his credentials as a leader and administrator, says a senior BJP leader, who is also a legislator. "In the administration, he is overshadowed by Fadnavis. His party is more of a loose conglomeration of legislators. He has no second rung to speak of," he notes.

SHINDE'S BUMPY ROAD

The Shinde-Fadnavis government may have received a breather from the Supreme Court, but it still has several challenges to surmount

- Shinde will have to contend with demands from his legislators for cabinet berths or posts on state-run corporations
- The Maharashtra council of ministers can have a strength of 43 ministers, including the chief minister, deputy chief minister, cabinet ministers and ministers of state. At present, the cabinet has 20 ministers, including Shinde and Fadnavis. The Shinde camp is insisting on an equal division of the remaining cabinet berths. However, the BJP, whose numbers in the assembly are almost thrice that of the Shinde group (not counting independents and smaller parties), is not in a mood to concede. Shinde may get between four to six ministerial berths
- The government will also have to overcome the perception that there is popular sympathy for Uddhav Thackeray and the opposition MVA
- Shinde's most daunting challenge is to establish his credentials as a leader and administrator and counter the deepening narrative that his authority is being undermined by the BJP